6 GENERAL TERMS AND CONDITIONS

C O N T E N T S

		PAGE
PART I	CONTRACT AND INTERPRETATION	1
GTC 1	DEFINITIONS	1
GTC 2	INTERPRETATIONS	3
	2.1 SINGULAR AND PLURAL	3
	2.2 HEADINGS	3
	2.3 DISCREPANCIES, ERRORS, OMISSIONS	3
	2.4 ENTIRE AGREEMENT	3
	2.5 NON-WAIVER	3
	2.6 INDEPENDENT CONTRACTOR	4
GTC 3	LANGUAGE AND LAW	4
GTC 4	NOTICES	4
GTC 5	PUBLICITY AND ADVERTISING	4
GTC 6	SETTLEMENT OF DISPUTES	4
PART II	RESPONSIBILITIES OF THE PARTIES	5
GTC 7	CONTRACTOR’S RESPONSIBILITIES	5
	7.1 REPRESENTATION	5
	7.2 COMPLIANCE WITH LAWS AND IKPT'S INSTRUCTIONS	5
	7.3 ACQUISITION OF PERMITS, ETC.	6
	7.4 ENVIRONMENTAL REQUIREMENT	6
	7.5 DOCUMENTS TO BE FURNISHED BY CONTRACTOR	7
GTC 8	IKPT’S RESPONSIBILITIES	7
	8.1 SITE	7
	8.2 TECHNICAL DOCUMENTS	8
	8.3 APPROVAL BY IKPT	8
PART III	PAYMENT	9
GTC 9	CONTRACT PRICE	9
GTC 10	PAYMENT TERMS	9
GTC 11	SECURITIES AND BONDS	9
GTC 12	BACKCHARGES	9
GTC 13	TAXES AND DUTIES	10
PART IV	WORK EXECUTION	11
GTC 14	IKPT 'S AND CONTRACTOR'S REPRESENTATIVES	11
GTC 15	PERFORMANCE OF WORKS	11
GTC 16	COMMENCEMENT OF WORK-ON-SITE	12
GTC 17	OTHER CONTRACTORS	12
GTC 18	SETTING-OUT	13
GTC 19	PROGRESS OF WORKS	13
GTC 20	CONTRACTOR'S EMPLOYEES	14
GTC 21	ADMINISTRATION AND CONTROL OF EMPLOYEES	14
GTC 22	TEMPORARY WORKS, CONSTRUCTION EQUIPMENT AND MATERIALS	15

GTC 23 CONTRACTOR-SUPPLIED EQUIPMENT AND MATERIALS 16
GTC 24 IKPT -SUPPLIED EQUIPMENT AND MATERIALS 16
GTC 25 IMPROPER WORKS AND MATERIALS 17
GTC 26 SAFETY AND SECURITY 17
GTC 27 ILLUMINATION 18
GTC 28 TEST AND INSPECTION 19
GTC 29 COMPLETION OF WORKS 20
GTC 30 PROVISIONAL ACCEPTANCE OF WORKS 21
GTC 31 FINAL ACCEPTANCE OF WORKS 22

PART V INDEMNITIES AND LIABILITIES 22
GTC 32 LIQUIDATED DAMAGES FOR DELAY 22
GTC 33 DEFECTS LIABILITY 22
GTC 34 GENERAL INDEMNIFICATION 23
GTC 35 PATENT RIGHT 23
GTC 36 LIENS 23
GTC 37 CONSEQUENTIAL DAMAGES 24
GTC 38 REMAINING OBLIGATIONS 24
GTC 39 SECRECY 24

PART VI RISK DISTRIBUTION 25
GTC 40 CARE AND PROTECTION 25
GTC 41 INSURANCE 26
41.1 IKPT -FURNISHED INSURANCES 26
41.2 CONTRACTOR-FURNISHED INSURANCES 26
41.3 GENERAL REQUIREMENTS FOR INSURANCES 26
GTC 42 SITE CONDITIONS 27
GTC 43 FORCE MAJEURE 28

PART VII CHANGE IN CONTRACT ELEMENTS 29
GTC 44 WORK CHANGE 29
GTC 45 ADJUSTMENT TO THE CONTRACT WORK SCHEDULE 31
GTC 46 CONTRACTOR’S CLAIMS 32
GTC 47 SUSPENSION 33
GTC 48 TERMINATION 33
48.1 TERMINATION BY IKPT 33
48.2 TERMINATION DUE TO CONTRACTOR'S DEFAULT 35
GTC 49 ASSIGNMENT AND SUBLETTING 37

GENERAL TERMS AND CONDITIONS

Part I CONTRACT AND INTERPRETATION

GTC 1 DEFINITIONS

In the CONTRACT, the following words and expressions are used, and they have the respective meanings hereby assigned to them, except where the context otherwise requires:

"CONTRACTOR" means IKPT's client named as such in the AGREEMENT, and includes its successors and permitted assigns and, where the CLIENT employs any consultant and/or agent in connection with the contract between the CLIENT and IKPT, further includes such consultant and/or agent unless otherwise defined, and "PRIMARY CONTRACT" means the contract entered into by and between the CLIENT and IKPT for or in connection with the construction of the PLANT.

"COMPLETION OF WORKS" means the state and event as specified in GTC 29 "COMPLETION OF WORKS" .

"CONTRACT" means this contract concluded by and between IKPT and the CONTRACTOR, embodying the agreement amongst the said parties to the CONTRACT, which consists of the CONTRACT DOCUMENTS, and "CONTRACT DOCUMENTS" means any and all the documents so enumerated and defined in the AGREEMENT as to form the CONTRACT.

"CONTRACT PRICE" means the compensation to be paid to the SUB-CONTRACTOR in accordance with the CONTRACT, in consideration of the WORKS having been performed and of the PERMANENT WORKS having been completed by the SUB-CONTRACTOR as per the requirements under the CONTRACT, as referred to in the AGREEMENT.

"CONTRACT WORK SCHEDULE (CWS)" means the detailed schedule for carrying out the WORKS to be prepared by the SUB-CONTRACTOR and approved by IKPT in accordance with GTC 16 "COMMENCEMENT OF WORK-ON-SITE".

"CONTRACTOR" means the contractor named as such in the AGREEMENT, and includes his personal representatives and his successors and permitted assigns.

"CONSTRUCTION EQUIPMENT" means any and all construction equipment, apparatus, tools and machinery, appliances or things of whatsoever nature required to perform and complete the WORKS. The CONSTRUCTION EQUIPMENT does not include such materials or other things which are to form part of the PERMANENT WORKS or the PLANT.

"COUNTRY" means the country in which the PLANT is to be built.
The term "day" means a calendar day of the Gregorian Calendar, the term "week" means seven (7) successive calendar days and the term "month" means any calendar month according to the said Calendar and, when used for the purpose of calculating a period of time, the period from a day of a month up to the beginning of the corresponding day of the next month if such exists, or if not, to the end of the last day of the next month.

"DEFECTS LIABILITY PERIOD" means the period referred to in GTC 33 "DEFECTS LIABILITY".

“EFFECTIVE DATE” means the date referred to in Article 5 of the AGREEMENT

"EQUIPMENT AND MATERIALS" means equipment and materials to be provided by IKPT in accordance with the CONTRACT, which are for incorporation into the PERMANENT WORKS.

"FINAL ACCEPTANCE OF WORKS" means the final acceptance by IKPT of the PERMANENT WORKS, pursuant to GTC 31 "FINAL ACCEPTANCE OF WORKS" .

“GTC” means these GENERAL TERMS AND CONDITIONS

"NOTICE OF INTENT" means IKPT's notice confirming its intent of awarding the CONTRACT to the CONTRACTOR.

"PERMANENT WORKS" means any and all buildings, structures, equipment and machinery, including materials, supplies and other things, which are of a permanent nature and are to be so designated by IKPT, and which shall be or shall have been built, erected, installed or otherwise completed by the CONTRACTOR under the CONTRACT.

"PLANT" means the plant named as such in the AGREEMENT, and includes its auxiliary facilities and installations, and all of which are to be built under the PRIMARY CONTRACT, and into which the PERMANENT WORKS under this CONTRACT are to be incorporated as integral part thereof.

"PROVISIONAL ACCEPTANCE OF WORKS" means the provisional acceptance by IKPT of the PERMANENT WORKS, pursuant to GTC 30 "PROVISIONAL ACCEPTANCE OF WORKS" .

“SC” means SPECIAL CONDITIONS

"SITE" means the place or places so designated by IKPT for the construction of the PLANT, including such place or places adjacent thereto which are for storage and assemblage of equipment and materials.

"SUBCONTRACTOR" means any subcontractor engaged by the CONTRACTOR in accordance with GTC 49 "ASSIGNMENT AND SUBLETTING" .

"TECHNICAL DOCUMENTS" means the drawings, data, specifications and other technical documents, and includes any such modifications thereof or additions thereto as may from time to time be furnished or approved by IKPT in writing.

"TEMPORARY WORKS" means any and all facilities of a temporary nature not intended for incorporation into the PERMANENT WORKS or the PLANT, which are buildings, structures, scaffolding, materials, roads, work areas, storage areas, unloading pier or jetty and so on, and which are required to perform and complete the WORKS. The TEMPORARY WORKS do not include the CONSTRUCTION EQUIPMENT.

"IKPT" means PT. Inti Karya Persada Tehnik, and includes its personal representatives, its successors and permitted assigns.

“WORK CHANGE” means any modification to the CONTRACT mutually agreed between the parties in accordance with the provisions of GTC 44 "WORK CHANGE".

"WORKS" means collectively all the works and services being in the CONTRACTOR's Scope of Works under the CONTRACT and, where the Scope of Works so stipulates, includes supply of equipment, materials, consumables, etc., all are undertaken and are to be performed and completed by the CONTRACTOR under the CONTRACT, for and/or in connection with the PERMANENT WORKS which are to form integral part of the PLANT.

GTC 2 INTERPRETATIONS

2.1 SINGULAR AND PLURAL

Where appropriate and the context so requires, the singular shall include the plural and vice versa, words indicating one gender include all genders, provisions including the word “agree”, “agreed” or “agreement” require the agreement to be recorded in writing, and “written” or “in writing” means hand-written, type-written, printed or electronically made and resulting in a permanent record.

2.2 HEADINGS

The headings and marginal notes in the CONTRACT DOCUMENTS shall not be deemed as part of the text of the provisions thereof and shall not be taken into consideration in the interpretation or construction of the CONTRACT.

2.3 DISCREPANCIES, ERRORS, OMISSIONS

Every error, omission, discrepancy, inconsistency or contradiction in or between any of the CONTRACT DOCUMENTS, the laws and regulations, etc., if any, shall be promptly upon discovery notified by the CONTRACTOR to IKPT before proceeding with the corresponding part of the WORKS. IKPT shall interpret or decide the true intent and meaning of any of the foregoing, and issue an instruction to the CONTRACTOR, with which the CONTRACTOR shall comply.

2.4 ENTIRE AGREEMENT

The CONTRACT embodies the entire agreement between IKPT and the CONTRACTOR. The parties shall not be bound by or be liable for any prior negotiations, representations and agreements, promise, inducement or understanding of any kind or nature whether written or oral, including IKPT’s instructions to bidder (ITB) and CONTRACTOR’s tender for the WORKS, if any, not set forth in the CONTRACT.

No changes, amendments or modifications of any of the terms and conditions or of the requirements given in the CONTRACT shall be valid unless reduced to writing, signed by both parties and expressly referring to the CONTRACT.

2.5 NON-WAIVER

No waiver by IKPT of any provision of the CONTRACT in any instance shall constitute a waiver of any other provision of the CONTRACT or of the same provision in any other instance, and waiver by IKPT of a breach by the CONTRACTOR of any provision of the CONTRACT shall not constitute a waiver by IKPT of claiming to the CONTRACTOR

against the CONTRACTOR's any other breach of such provision or breach of any other provision of the CONTRACT.

2.6 INDEPENDENT CONTRACTOR

The CONTRACTOR shall act as an independent contractor and not as agent of the CLIENT or IKPT in the implementation of the CONTRACT and shall perform the WORKS in an orderly and workmanlike quality manner for the entire period until the Certificate of FINAL ACCEPTANCE OF WORKS shall have been issued.

GTC 3 LANGUAGE AND LAW

(1) The language to be employed in the implementation of the CONTRACT shall be the English language, and all the communications between the parties hereto, whether in writing or otherwise, shall also be in the English language.

In the event local authority requires the CONTRACTOR, either directly or through IKPT, to submit some documents in local language other than the English, the CONTRACTOR shall at his cost prepare and submit such documents in such language, together with English translation thereof.

(2) The CONTRACT shall be interpreted and construed in accordance with and governed by the Japanese Law unless otherwise provided for in the CONTRACT.

GTC 4 NOTICES

Unless otherwise set out in any other CONTRACT DOCUMENTS, all notices to be given under the CONTRACT (hereinafter referred to as "Notices") shall be in writing, and sent by personal delivery, post (airmail, if sent overseas), special courier, facsimile or email to the address of IKPT or the CONTRACTOR. Notices shall include any approvals, consents, instructions, orders and certificates to be given under the CONTRACT.

GTC 5 PUBLICITY AND ADVERTISING

The CONTRACTOR shall not take any photographs or make any announcement, release any information concerning this CONTRACT, or the PROJECT, or any part thereof to any third party unless prior written consent is obtained from IKPT.

GTC 6 SETTLEMENT OF DISPUTES

(1) Despite due effort having been made towards settlement, if any dispute, difference of opinion or claim which the parties hereto are unable to resolve through amicable negotiation arises out of or in connection with the CONTRACT, either party may, after having had the other party hereto so notified with a notice period of no less than one (1) month, refer the matter in question to arbitration for settlement under the Rules of National Arbitration Board of Indonesia rules, which will hold in Jakarta. The decision of such arbitration shall be accepted as final and binding by the parties without resource

The arbitration shall take place in JAKARTA, INDONESIA, unless the parties hereto agree otherwise. The arbitration shall be conducted in English Language.

(2) The responsibilities and obligations of the parties hereto under the CONTRACT shall not be altered by reason of the arbitration and the CONTRACTOR shall, except for the case of termination of the CONTRACTOR's right to do so, proceed with the WORKS with all due diligence.

(3) The arbitration award shall be final and shall bind the parties hereto.

Part II RESPONSIBILITIES OF THE PARTIES

GTC 7 CONTRACTOR'S RESPONSIBILITIES

7.1 REPRESENTATION

(1) The CONTRACTOR hereby represents that he is fully experienced and properly qualified, licensed, equipped, organized and financed and is familiar with the legal requirements and practices, and further represents that he is, therefore, capable of performing the WORKS in accordance with the CONTRACT and to the reasonable satisfaction of IKPT.

(2) The CONTRACTOR also represents that, prior to reaching an agreement as to the CONTRACT PRICE and/or the unit rates and the conditions of the CONTRACT, he has:

(a) carefully and thoroughly studied and examined all the CONTRACT DOCUMENTS, the cost etc. on the part of the CONTRACTOR for the WORKS and the resources that the CONTRACTOR is to mobilize for the WORKS,

(b) subject to GTC 42, obtained all necessary information and data concerning the WORKS and made himself fully aware thereof in respect of but not limited to, the general and local conditions, transportation, disposal, handling and storage of materials; the availability of labour, materials, water, electricity and other utilities; means of access; the uncertainty of weather or other physical conditions at the SITE; the configuration and condition of the ground in the SITE, including subsoil conditions,

(c) inspected the SITE and its surrounding areas and obtained any and all necessary information and data relevant thereto and made himself fully aware thereof, and

(d) taken into his due account all such conditions and aspects as may affect or be deemed to affect the performance of, the cost etc. for and the time and the time schedule for and the progress of the WORKS.

7.2 COMPLIANCE WITH LAWS AND IKPT'S INSTRUCTIONS

The CONTRACTOR shall observe, comply with and strictly adhere to:

(1) any and all statutes, laws and by-laws, ordinances, regulations of the Governments of the COUNTRY and other countries concerned or respective subdivisions thereof or other duly constituted authorities, and rules and regulations of all public bodies or corporate bodies whose property or right may be affected in any way by the performance of the WORKS,

(2) IKPT's instructions or directions on any matter, whether mentioned in the CONTRACT or not, concerning the WORKS, the CONTRACT and/or the implementation thereof, and

(3) the CLIENT's and IKPT's rules and regulations.

In connection with IKPT's instructions or directions referred to in Item (2) above, the CONTRACTOR affirms that, even if he disagrees therewith, he shall first comply fully with them and, without delay, perform the WORKS and/or other contractual obligations accordingly. The CONTRACTOR shall in no way be permitted nor entitled to slow down, suspend or cease the performance of or abandon the WORKS or any part thereof and/or any of his contractual obligations.

Such compliance by the CONTRACTOR shall not jeopardize his rights for making claims under GTC 46 “CONTRACTOR’s CLAIMS” or referring such disagreement to arbitration under GTC 6 “SETTLEMENT OF DISPUTES”. Failure to give a notice in accordance with GTC 46 “CONTRACTOR’s CLAIMS” shall be deemed as a waiver of CONTRACTOR’s right for a claim with regard to the matter.

The CONTRACTOR shall keep IKPT indemnified against all penalties and liabilities resulting from breach by the CONTRACTOR of the obligations referred to in Item (1) above.

Any substitution or deviation for the CONTRACTOR's convenience of or from those provided for in the CONTRACT DOCUMENTS and/or the rules, regulations and so forth shall only be permitted upon the written prior approval by IKPT, provided that, although permitted by IKPT, the CONTRACTOR shall in no way be entitled to claim for any additional payment or extension of time or the both.

7.3 ACQUISITION OF PERMITS, ETC.

The CONTRACTOR shall at his cost apply for or declare to and, as appropriate, obtain and provide all necessary permits, authorizations, licenses, etc. required in the COUNTRY to be obtained in its name for the performance of or in connection with the WORKS, and shall keep the CLIENT and IKPT indemnified from and against any consequences that may result in from the CONTRACTOR's compliance with or failure to comply with the foregoing.

7.4 ENVIRONMENTAL REQUIREMENT

Throughout performance of the WORK, the CONTRACTOR shall conduct all operations in such a way as to minimize impact upon the natural environment and prevent any spread of contaminated or hazardous materials. The CONTRACTOR shall, among other things,

(1) Provide dust control of its operations within WORK and all other areas under its control and shall coordinate and cooperate with others for dust control in common areas;

(2) Provide working machinery and equipment with efficient noise suppression devices and all other noise and vibration abatement measures necessary for the protection of workers and the public;

(3) Provide suitable waste, sewage, sanitary, and garbage disposal methods and procedures approved by IKPT;

(4) Provide suitable equipment, facilities and precautions to prevent the discharge of contamination into the atmosphere, any body of water, or land areas;

(5) Provide all documentation required by all levels of governing authority or this CONTRACT concerning environmental requirements.

7.5 DOCUMENTS TO BE FURNISHED BY CONTRACTOR

The CONTRACTOR shall at his cost prepare and submit to IKPT all the drawings, specifications, calculations and backup data thereof, schedules, plans, forecasts, procedures, reports and any and all other documents that the CONTRACT DOCUMENTS require or IKPT reasonably requires of the CONTRACTOR to submit from time to time, and all such other documents as may from time to time become necessary for the proper implementation of the CONTRACT.

All drawings, specifications, calculations and backup data thereof, schedules, plans, forecasts, procedures, reports and any and all other documents prepared and/or submitted by the CONTRACTOR and/or, its SUBCONTRACTORs shall become the property of IKPT. IKPT shall be entitled to use such documents for any purpose whatsoever. The CONTRACTOR shall control and maintain such documents in proper order at the SITE, and upon IKPT’s request shall promptly provide a copy of such documents and/or return such documents to IKPT as instructed by IKPT.

GTC 8 IKPT’S RESPONSIBILITIES

8.1 SITE

(1) IKPT shall, from time to time, make available to the CONTRACTOR such portion of the SITE as shall become necessary in meeting the actual progress of the WORKS. Use of such portion of the SITE and the access thereto shall not be exclusive to the CONTRACTOR but only as such that shall enable him to perform the WORKS and to maintain and take care of the PERMANENT WORKS and the TEMPORARY WORKS.

The CONTRACTOR shall restrict himself to the given portion of the SITE and the CONTRACTOR's camp area(s) including the access thereto, and shall not unnecessarily enter into and use other places or areas.

The CONTRACTOR shall not allow anyone other than the CONTRACTOR's and the SUBCONTRACTORs' employees engaged in the WORKS to enter into the SITE without IKPT's permission that would be reasonably granted upon the application by the CONTRACTOR thereto.

(2) IKPT shall at all the time have access to any and all places where the WORKS or any part thereof have been performed, are being prepared for or performed or are to be performed, or from where materials, manufactured articles and machinery are or are to be obtained. The CONTRACTOR shall arrange with the concerned and shall afford IKPT and, as necessary, the CLIENT every facility for and every assistance in or in obtaining the right of access.

(3) The CONTRACTOR shall at his cost keep the portion of the SITE assigned to him in unobstructed, clean, safe and orderly state at all the time to the reasonable satisfaction of

IKPT, failing which IKPT may carry out by an appropriate means and recover from the CONTRACTOR all the costs and expenses incurred by it from so doing.

(4) All materials obtained from dismantling work shall remain the property of IKPT, and the CONTRACTOR shall not use or dispose of any such materials without IKPT's prior permission. The CONTRACTOR shall at his cost collect all such materials at the place(s) to be designated by IKPT and dispose thereof in accordance with IKPT's instructions.

(5) The CONTRACTOR shall pay and cause the SUBCONTRACTORs to pay due attention and regard to all historical areas and things existing or found in the SITE or in the immediate vicinity thereof and, upon discovery thereof, shall notify IKPT and, concurrently, shall protect by appropriate means such areas and things.

All fossils, coins, article of value or antiquity, structures and other remains or things of geological or archaeological interest discovered on the SITE shall as between IKPT and the CONTRACTOR remain the absolute property of IKPT.

8.2 TECHNICAL DOCUMENTS

(1) IKPT shall, from time to time, furnish the CONTRACTOR with the TECHNICAL DOCUMENTS for the PERMANENT WORKS and/or the WORKS as shall become necessary in meeting the actual progress of the WORKS, except to the extent that is stated in GTC 7.5 "DOCUMENTS TO BE FURNISHED BY CONTRACTOR".

The CONTRACTOR shall be furnished with one (1) set of prints and one (1) set of electronic editable file of the TECHNICAL DOCUMENTS at no cost to the CONTRACTOR. The CONTRACTOR shall maintain safely and in good order the furnished TECHNICAL DOCUMENTS during the performance of the WORKS within its site office unless otherwise agreed by IKPT and shall return them to IKPT upon expiry of the DEFECTS LIABILITY PERIOD pursuant to GTC 33 "DEFECTS LIABILITY", together with copy thereof, if any.

(2) IKPT shall have the right to make at any time alterations in, omissions from, additions to, changes to or substitutions for the latest version of the TECHNICAL DOCUMENTS which in the opinion of IKPT are necessary for proper and adequate performance of the WORKS or for completing the PERMANENT WORKS. The CONTRACTOR shall be bound by such revisions of or revised version of the TECHNICAL DOCUMENTS and perform the WORKS in accordance therewith.

8.3 APPROVAL BY IKPT

IKPT has the right to make decision in the form of approval, change, modification or rejection in whole or in part, on such documents, specifications, drawings, plans and time schedules for the WORKS, procedures, subcontracts, purchase orders, invoices and others regarding which the CONTRACT calls for IKPT's approval and on such other matters as IKPT may consider necessary for proper and smooth implementation of the CONTRACT. The CONTRACTOR shall, in a timely manner, submit to IKPT any and all such documents, etc., requiring IKPT's approval (or disapproval) which shall be given within the period specified in SC 9.2.

IKPT's approval or disapproval, change, modification and/or rejection as aforementioned shall not relieve the CONTRACTOR from any of his liabilities and obligations under the CONTRACT.

Part III PAYMENT

GTC 9 CONTRACT PRICE

In consideration of and as the full compensation for the CONTRACTOR's performance of the WORKS, completion of the PERMANENT WORKS and fulfillment and discharge of other obligations under the CONTRACT, IKPT shall, in accordance with the terms of payment set forth in the SPECIAL CONDITIONS and other CONTRACT DOCUMENTS, pay the CONTRACTOR the sum being the CONTRACT PRICE.

The CONTRACT PRICE shall cover any and all costs, charges, expenses, insurance, contingencies, taxes, overhead charges and profit on the CONTRACTOR's part for fulfillment of his contractual obligations hereunder.

The CONTRACTOR has satisfied himself as to the correctness and sufficiency of the CONTRACT PRICE and of each of the unit rates, if any, which are set out in the AGREEMENT, the SCHEDULE OF PRICES AND RATES and/or other CONTRACT DOCUMENTS.

GTC 10 PAYMENT TERMS

Payment of the CONTRACT PRICE or any part thereof shall be made in accordance with the Payment Terms set forth in the SPECIAL CONDITIONS and/or other CONTRACT DOCUMENTS. Any payment made by IKPT to the CONTRACTOR shall not constitute nor be construed to mean IKPT's acceptance of any portion of the WORKS or the PERMANENT WORKS.

GTC 11 SECURITIES AND BONDS

Where so provided for in the SPECIAL CONDITIONS or in any other CONTRACT DOCUMENTS, the CONTRACTOR shall at his cost obtain and furnish IKPT with such bank guaranties as Performance Bond, Down-Payment Refund Bond and/or other bond, issued by a first class bank acceptable to and in the form furnished by or acceptable to or approved by IKPT.

GTC 12 BACKCHARGES

If, upon the CONTRACTOR's request, IKPT shall have supplied, furnished, provided or otherwise rendered the CONTRACTOR any of equipment and materials, the CONSTRUCTION EQUIPMENT, the TEMPORARY WORKS, facilities, works and services, utilities and so forth which are under the CONTRACT chargeable to the CONTRACTOR or not included in IKPT's Scope of Supply or Service, all such shall at the rate or price as may be set out in the CONTRACT or as may be agreed by the parties hereto be backcharged to the CONTRACTOR.

Furthermore, if IKPT take over any part of the Works for the CONTRACTOR due to noncompliance with IKPT’s instruction pursuant to GTC 19 “PROGRESS OF WORKS”, all incurred cost taken by IKPT shall be backcharged to the CONTRACTOR.

The cost of backcharge work shall include:

(1) Incurred labor costs including all payroll additives;

(2) Incurred net delivered material costs;

(3) Incurred subcontractor and supplier costs directly related to performing the corrective action;

(4) Equipment and tool rentals at prevailing rates in the Jobsite area;

(5) Incurred IKPT's staff costs and expenses directly involved to its Work; and

(6) IKPT's overhead, supervision and administrative costs for items 1 through 5.

The CONTRACTOR hereby agrees that such backcharge, if any, shall be paid by the CONTRACTOR to IKPT as per IKPT's invoice therefor, shall be deducted from any money due or becoming due to the CONTRACTOR, shall be recovered by IKPT by encashment in whole or in part any Bond referred to in GTC 11 "SECURITIES AND BONDS" or by any other means as IKPT may consider appropriate.

GTC 13 TAXES AND DUTIES

The CONTRACTOR shall bear and pay as and when due any and all state, regional and municipal taxes, duties, levies, fees, charges, impositions, royalties and so forth as may be imposed on the CONTRACTOR, arising from or in connection with the implementation of the CONTRACT and shall make necessary declarations or give notices regarding taxes, etc. to the tax office and/or other bodies concerned.

IKPT shall deduct or withhold any such tax, etc. from the payment to the CONTRACTOR if so required by the Government of the COUNTRY or any subdivision thereof and/or other bodies concerned. Should the CONTRACTOR fail to pay or fail to cause to pay for whatsoever reason any of such taxes, etc., IKPT may withhold or deduct an amount sufficient to cover such taxes, etc. as well as all reasonable costs and expenses on IKPT's part incurred thereby, from any money due or becoming due to the CONTRACTOR.

The stamp duties imposed on this CONTRACT shall be borne by the CONTRACTOR.

The CONTRACTOR shall defend, indemnify and hold IKPT harmless from and against all claims by any governmental or taxing authority claiming taxes based on gross receipt or on income of the CONTRACTOR or any of its SUBCONTRACTORS or any of their respective agents or employees in respect of any payment for the WORK made to or earned by the CONTRACTOR or any of its SUBCONTRACTORS or any of their respective agents or employees under this CONTRACT. If required by the laws of any governmental or taxing authority having jurisdiction, IKPT shall have the right to withhold amounts, at the withholding rate specified by such laws, from payment due from IKPT to the CONTRACTOR hereunder, and any amount so withheld shall be credited against any payment otherwise owing by IKPT to the CONTRACTOR by virtue of the terms of this CONTRACT.

Part IV WORK EXECUTION

GTC 14 IKPT'S AND CONTRACTOR'S REPRESENTATIVES

(1) IKPT shall appoint its Representative having the authority to act for and on behalf of IKPT with respect to the CONTRACT.

The appointment thereof and any change thereafter shall be promptly notified in writing to the CONTRACTOR.

(2) The CONTRACTOR shall, subject to IKPT's approval, appoint his Representative authorized to make binding decisions on behalf of the CONTRACTOR in respect of the CONTRACT. The Representative shall be exclusively engaged in the implementation of the CONTRACT and in the superintendence of the WORKS and be stationed at the SITE for the period IKPT considers necessary for the CONTRACT. He shall, when leaving the SITE, obtain IKPT's approval and appoint a suitable deputy acceptable to IKPT, who shall act for and on behalf of the representative during his absence.

IKPT shall issue instruction to the CONTRACTOR for replacement of the CONTRACTOR's Representative if, in the opinion of IKPT, the Representative is incapable, not diligent, negligent, unfit or otherwise undesirable, then the CONTRACTOR shall replace the Representative by other suitable person. This provision may be applied to the CONTRACTOR's other key personnel participating in the performance of the WORKS and/or the implementation of the CONTRACT.

The Representative shall not be engaged in any work other than is required for the CONTRACT and shall not be transferred or replaced without IKPT's prior written consent or such an instruction as aforementioned.

GTC 15 PERFORMANCE OF WORKS

(1) The CONTRACTOR shall with due care and diligence and in a workmanlike quality manner perform the WORKS and take care of and maintain the PERMANENT WORKS and the TEMPORARY WORKS, and shall so perform all miscellaneous works of a direct, indirect or incidental nature, which may reasonably be inferred from the CONTRACT to be included in the CONTRACTOR's Scope of Works under the CONTRACT.

CONTRACTOR shall perform the WORKS to the reasonable satisfaction of IKPT in accordance with the provisions of the CONTRACT or, where not so specified, in accordance with good industrial practice.

Except as may otherwise be provided for elsewhere in the CONTRACT, IKPT applies to the PLANT and the performance of the WORKS by the CONTRACTOR the requirements of the latest version of ISO "Quality Systems - Model for Quality Assurance in Design / Development, Production, Installation and Servicing" and shall implement adequate quality control in accordance therewith. The CONTRACTOR shall, according to the scheme, establish and maintain appropriate quality control system for the WORKS, which system shall be subject to IKPT approval, and shall in the performance of the WORKS exercise proper quality control for the WORKS. The CONTRACTOR hereby recognizes and confirms that all costs, charges, expenses, etc. with regard to the quality control under this Subclause are covered by and included in the CONTRACT PRICE or the amounts and/or unit rates on which the CONTRACT PRICE is based.

(2) Within such a reasonable advance before commencement of the PERMANENT WORKS-on-Site as IKPT may designate, the CONTRACTOR shall complete and submit to IKPT for approval a program proposing the order of work sequence, plans, time schedule and method according to which he is to carry out the WORKS.

(3) The CONTRACTOR fully understands that continuous performance of the WORKS is not guaranteed by IKPT and that, as referred to in GTC 17 "OTHER CONTRACTORS", the WORKS may at times be interrupted due to the necessity of harmonious co-working amongst the CONTRACTOR and other contractors, for the convenience of overall control and coordination of the PROJECT or for other reason or cause that IKPT may reasonably recognize or deem unavoidable.

The CONTRACTOR as being an experienced contractor hereby represents that the possibility of rescheduling the WORKS, change in the work sequence and, further, of stand-by and/or idle time due to such occasional rescheduling, change or work interruption has been taken into his due account before entering into the CONTRACT, and the CONTRACTOR shall not interpret such occasional interruption as suspension under GTC 47 "SUSPENSION".

GTC 16 COMMENCEMENT OF WORK-ON-SITE

At least two (2) months before commencement of the PERMANENT WORKS-on-site, the CONTRACTOR shall complete scheduling and submit to IKPT for approval the detailed schedules for the WORKS conforming to all the requirements shown in the Time Schedule of the TECHNICAL DOCUMENTS. These detailed schedules shall be checked and may be subject to modification by IKPT and, after having been approved by IKPT, shall be incorporated into the CONTRACT WORK SCHEDULE (CWS).

This CWS shall be regarded as the CWS of the First Issue and treated as being the basis for performance and completion of the WORKS, and with which CWS of the First Issue, the Time Schedule given in the TECHNICAL DOCUMENTS shall be replaced, as the said Time Schedule is originally intended to serve the CONTRACTOR as a mere guidance for the overall work schedule.

The CONTRACTOR shall commence the Work-on-Site according to the CWS. Before commencing the Work-on-Site, the CONTRACTOR shall have had his Representative be present at the SITE, and have mobilized, provided or made available at the SITE his supervisory crew, work force, the CONSTRUCTION EQUIPMENT, equipment and materials for the PERMANENT WORKS and the TEMPORARY WORKS, consumables, utilities and so forth being in his Scope of Works and of Supply under the CONTRACT, which are inevitably necessary at the time of work commencement and in such periods immediately thereafter.

GTC 17 OTHER CONTRACTORS

(1) IKPT and the CLIENT may respectively employ other contractors who are to work in the same building, facilities and/or portion of the SITE where the CONTRACTOR is to work, and the CONTRACTOR shall cooperate with and render possible assistance to such contractors and shall to the maximum extent avoid the work interference in between.

(2) When any part of the PERMANENT WORKS or performance of the WORKS depends upon the work done by any other contractor, the CONTRACTOR shall to a reasonable extent inspect from time to time such work and promptly notify IKPT of delay and/or defect therein, if any, which may affect the PERMANENT WORKS or proper performance of the WORKS. IKPT may instruct the CONTRACTOR to reschedule and/or change the order of sequence of the WORKS for the sake of overall control and coordination and, whenever so instructed, the CONTRACTOR shall comply therewith.

GTC 18 SETTING-OUT

The CONTRACTOR shall be responsible for the true and proper setting-out of the PERMANENT WORKS and for the provision of all necessary instruments, appliances, materials and labour therefor, and shall carefully protect and preserve all bench marks, sight rails, marker pegs and other things used in setting-out of the PERMANENT WORKS. If, at any time before FINAL ACCEPTANCE OF WORKS, any error shall arise or be found in the positions, levels, dimensions or alignments of any part of the PERMANENT WORKS, the CONTRACTOR shall at his cost correct such error to the reasonable satisfaction of IKPT. Check by IKPT of the setting-out shall in no way relieve the CONTRACTOR from his responsibility for the correctness thereof and his liability for remedy thereof, if incorrect.

GTC 19 PROGRESS OF WORKS

(1) IKPT may establish and impose on the CONTRACTOR Milestones.

The term "Milestone" means the target date set for commencement and/or completion of the WORKS, for completion of the whole or a certain important portion of the WORKS or for completion of the whole or a certain unit or section of the PERMANENT WORKS, by which target date, the CONTRACTOR is to have commenced and/or completed as aforementioned, each of such work phases as being the objective of the respective Milestones.

(2) The CONTRACTOR shall be responsible for maintaining a proper rate of progress of the WORKS and for completing the PERMANENT WORKS by the time specified in the CONTRACT. To ensure the proper rate of progress, the CONTRACTOR shall achieve every Milestone, and other activities which shall be indicated in the CWS or other CONTRACT DOCUMENTS. The CONTRACTOR shall closely monitor the progress of the WORKS and shall take timely measures when delay is experienced or anticipated.

If the CONTRACTOR fails to achieve any Milestone for any reason not attributable to IKPT nor caused by any FORCE MAJEURE occurrence, he shall not be entitled to receive the progress payment or any other payment due in the month in which he has failed to clear any Milestone, until the CONTRACTOR shall have cleared the Milestone in question.

In addition, delay in achievement of some of the Milestone(s) shall render the CONTRACTOR liable for the payment to IKPT of the Liquidated Damages pursuant to GTC 32 "LIQUIDATED DAMAGES FOR DELAY" ,

Should the CONTRACTOR actually face or forecast any delay in the WORKS, he shall promptly notify IKPT in writing of such actual or anticipated delay together with the details

thereof. When requested by IKPT the CONTRACTOR shall submit his plan for counter-measures showing modifications necessary to existing schedule to ensure satisfactory completion of the Works or any part of the Works. IKPT may give instructions as to how to proceed such plan or counter-measures so as to adequately cope with, minimize or prevent such actual or anticipated delay. If the cause of delay is due to reasons attributable to the CONTRACTOR, any and all the cost and expenses, etc. that may be incurred by taking such counter-measures even modified by IKPT's instruction or decision, if any, shall be borne by the CONTRACTOR.

(4) If within a reasonable period as determined by IKPT, the CONTRACTOR does not improve the progress of the WORKS, IKPT may require an increase in the CONTRACTOR's labour force, the number of shifts, overtime operations, additional days of work per week, expedited shipment(s) of equipment and materials, and/or an increase in the amount of construction equipment, all at the CONTRACTOR's account, or IKPT may in its opinion, take over any part of the Works to reinforce, improve and expedite the CONTRACTOR's Work and backcharge to the CONTRACTOR all of IKPT's incurred cost and expense pursuant to GTC 12 "BACKCHARGES".

(5) Adjustment of the time schedule indicated in the CWS shall in no way be granted for the delay due to the CONTRACTOR's fault, negligence or failure to properly perform his contractual obligations or to comply with IKPT's instructions or with the CONTRACT.

(6) Any claim by the CONTRACTOR for adjustment of the time schedule indicated in the CWS shall be submitted to IKPT subject to GTC 45 "ADJUSTMENT TO THE CONTRACT WORK SCHEDULE" .

GTC 20 CONTRACTOR'S EMPLOYEES

(1) The CONTRACTOR shall make available and employ competent and well-experienced key personnel for construction management, planning, schedule control, quality control, work force supervision, administration and labour control, safety control etc., sufficient to ensure proper and quality performance and timely completion of the WORKS and fulfillment of the CONTRACTOR's responsibilities and obligations under the CONTRACT. The CONTRACTOR shall not release, transfer or replace any key personnel without IKPT's prior written approval.

(2) The CONTRACTOR shall mobilize a sufficient number of capable and efficient skilled, semi-skilled, unskilled and common workers of such respective work categories as may be required for the WORKS and others associated therewith.

(3) The CONTRACTOR shall have due regard to all relevant labour laws, locally recognized festivals, days of rest and religions or other social traditions or customs in all dealings with the personnel and workers in his employment, whether local or otherwise.

The CONTRACTOR shall at his cost replace any employee who in the opinion of IKPT misconducts himself, or is incompetent, negligent or delinquent or whose employment is in any way undesirable to IKPT.

GTC 21 ADMINISTRATION AND CONTROL OF EMPLOYEES

(1) The CONTRACTOR shall be fully and solely responsible for his employees' safety and health and in this regard, except to the extent that IKPT is to make available according to the CONTRACT, if any, the CONTRACTOR shall at his cost and under his responsibility provide, furnish, supply, make available or otherwise render his employees any and all installations, facilities, services, goods and other things as necessary, which for example are accommodation camp, catering service, water and electricity, medical and sanitary provisions, safety goods and means of transportation.

(2) The CONTRACTOR shall cause his employees to protect persons and properties in and in the neighbourhood of the SITE and not to commit any unlawful, riotous or disorderly conduct and not to disturb the public peace and convenience.

The CONTRACTOR shall avoid labour disputes, strikes, slowdowns and such other difficulties amongst his employees and, in the event of imminence or occurrence of any of such difficulties, shall inform IKPT thereof without delay. The CONTRACTOR shall at his cost settle expeditiously such a difficulty whenever occurred, in the manner so as to prevent or minimize delay in the WORKS.

(3) The CONTRACTOR shall, to the maximum practicable extent, utilize for the WORKS the resources locally available in the COUNTRY, the local manpower in particular.

The CONTRACTOR shall pay his local employees at such rates of wages as are prevailing in the COUNTRY and shall pay in cash or by any other appropriate means according to applicable laws and regulations of and/or according to the customary practice regarded in the COUNTRY.

GTC 22 TEMPORARY WORKS, CONSTRUCTION EQUIPMENT AND MATERIALS

(1) Except as may be specifically provided for in the SPECIAL CONDITIONS or other CONTRACT DOCUMENTS, the CONTRACTOR shall at his cost procure, provide, supply or make available at the SITE all necessary equipment and materials for the PERMANENT WORKS and his TEMPORARY WORKS and shall mobilize his CONSTRUCTION EQUIPMENT, and shall retain them thereat until the time they are used for or incorporated into the PERMANENT WORKS or the TEMPORARY WORKS or for the period during which they are needed. They shall when brought to on the SITE be deemed to have been exclusively intended for the WORKS and shall not be removed from the SITE without IKPT's prior written approval.

(2) The CONSTRUCTION EQUIPMENT and the TEMPORARY WORKS furnished by the CONTRACTOR shall respectively be in safe and proper operating condition, fit for the intended use and suitable for the safe and efficient performance of the WORKS. They shall from time to time be subject to inspection and approval by IKPT, and all such as may be rejected by IKPT as not conforming with the foregoing shall, at the CONTRACTOR's cost and promptly without causing delay in the WORKS, be replaced by the CONTRACTOR with proper replacements or substitutes acceptable to IKPT.

GTC 23 CONTRACTOR-SUPPLIED EQUIPMENT AND MATERIALS

(1) Prior to making purchases and unless IKPT instructs or concurs otherwise, the CONTRACTOR when requested by IKPT shall at his cost prepare or make available and submit to IKPT for its reference or approval, the following:

(a) a list of the CONTRACTOR-proposed vendors for equipment and materials being in his Scope of Supply,

(b) a copy of the CONTRACTOR's Request for Quotation to be issued to the approved vendors, including specifications and drawings, and

(c) an unpriced copy of quotations from the approved vendors, and

(d) an unpriced copy of purchase orders to be placed with the approved vendors.

(2) Unless otherwise provided for in the CONTRACT, the CONTRACTOR shall at his cost make all necessary arrangements for transportation to, handling and storage at the SITE of the equipment and materials which the CONTRACTOR is to supply under the CONTRACT.

All of the equipment and materials which the CONTRACTOR shall supply shall be brand-new and, where no requirements are specified, all such equipment and materials to be incorporated into the PERMANENT WORKS shall be subject to IKPT's prior approval.

GTC 24 IKPT-SUPPLIED EQUIPMENT AND MATERIALS

(1) IKPT shall free of charge issue to the CONTRACTOR from time to time the EQUIPMENT AND MATERIALS as shall become necessary in meeting the actual progress of the WORKS, so listed in the CONTRACT DOCUMENTS in accordance with the conditions set forth therein.

(2) The CONTRACTOR shall in consultation with IKPT work out a proper plan for handling of and handle in accordance therewith the EQUIPMENT AND MATERIALS issued to him and shall minimize the wastage in use or consumption thereof, so as not to exceed such wastage allowance as may be given in the TECHNICAL DOCUMENTS or other CONTRACT DOCUMENTS or, if not stipulated in any of the CONTRACT DOCUMENTS, such reasonable allowance as commonly accepted in the construction industry.

Should the CONTRACTOR have used or consumed any of the EQUIPMENT AND MATERIALS exceeding such wastage allowance as aforementioned, the CONTRACTOR shall except to the extent as may be justified be held liable therefor and shall compensate and pay IKPT by an appropriate means the sum corresponding to the value of the EQUIPMENT AND MATERIALS having been overused or over-consumed by the CONTRACTOR, unless such overuse or over-consumption is exonerated by IKPT.

(3) The CONTRACTOR shall be responsible for the safe custody of the EQUIPMENT AND MATERIALS issued to him, until the Certificate of COMPLETION OF WORKS shall have been issued, and further responsible for maintenance of the accurate record of receipt and of use or consumption thereof and, before COMPLETION OF WORKS, both IKPT

and the CONTRACTOR shall unless IKPT instructs or concurs otherwise check up on the materials' status by means of theoretical calculations. The CONTRACTOR shall return all surplus and scrap materials to IKPT at the place(s) to be designated by IKPT.

(4) All the EQUIPMENT AND MATERIALS shall at all the time remain the property of and be open to inspection by IKPT. Any of the EQUIPMENT AND MATERIALS shall neither be placed at the disposal of any third person or party, used for any purpose other than contemplated in the CONTRACT nor removed from the SITE.

GTC 25 IMPROPER WORKS AND MATERIALS

(1) During the performance of the WORKS, irrespective of whether IKPT's approval has therefor been granted or not, the CONTRACTOR shall at his cost undertake any remedial measures to make good any part of the WORKS that does not conform to the requirements of the CONTRACT.

(2) In the event such remedial measures shall involve any additional issue of the EQUIPMENT AND MATERIALS, the CONTRACTOR shall compensate and pay IKPT the cost thereof, notwithstanding the provisions as for wastage allowance set forth in GTC 24 "IKPT-SUPPLIED EQUIPMENT AND MATERIALS" . IKPT has the right to withhold the payment for such improper work or, if the payment has already been made, withhold the payment of that amount out from any outstanding invoice until such work has been properly made good to the reasonable satisfaction of IKPT.

(3) The CONTRACTOR shall search for the cause of defect, imperfection, inadequacy or fault in the PERMANENT WORKS, if any such problem appears before the DEFECTS LIABILITY PERIOD shall have expired.

Whenever IKPT issues any direction with regard to the search, the CONTRACTOR shall conduct the search in accordance therewith.

If the cause of such problems as aforementioned shall be the one for which the CONTRACTOR shall be liable under the CONTRACT, then all the costs of search shall be to the CONTRACTOR's account.

(4) If the CONTRACTOR fails to comply with IKPT's orders pursuant to Subclauses (1) and (2) of this GTC 25, IKPT may by itself or by employing any other contractor carry out necessary remedial work and if such work shall be the one which, in the opinion of IKPT, the CONTRACTOR shall be liable to do at his cost, then all costs and expenses incurred from so doing shall be recovered from the CONTRACTOR.

GTC 26 SAFETY AND SECURITY

The CONTRACTOR shall with regard to performance of the WORKS be responsible for safety, security and protection of human lives, properties and environment in or in the neighbourhood of the SITE, shall at his cost take and maintain all the measures and arrangements required therefor and shall comply with any and all the national, state, regional and municipal laws and regulations being and to be from time to time in force in the COUNTRY in respect to the foregoing.

The CONTRACTOR shall be liable for any and all damages due directly or indirectly to his own, to the SUBCONTRACTORs' or to their respective officers' and/or employees' activities not complying with any and all the stipulations for safety and security as may be set forth in the CONTRACT or as may from time to time be issued to the CONTRACTOR, such as, but not limited to, those stipulations for prohibition of smoking, making bonfire or using unauthorized fire-tools.

The CONTRACTOR shall at all times conduct all WORKS under this CONTRACT in manner to avoid bodily harm to persons or damage to property. The CONTRACTOR shall promptly take all precautions which are necessary and adequate against any condition which involves a risk of bodily harm to persons or a risk of damage to any property. The CONTRACTOR shall continuously inspect all Work, materials and shall be solely responsible for the discovery, determination and correction of such conditions.

The CONTRACTOR shall keep IKPT fully indemnified from and against any and all proceedings, actions, penalties, costs, fees, expenses, charges and so on whatsoever they may be, which arise from the CONTRACTOR's failure to comply or to cause the SUBCONTRACTORs to comply with the foregoing Subclauses of this GTC 26.

The CONTRACTOR shall comply with all applicable safety laws, regulations and standards. The CONTRACTOR shall coordinate with other contractors and subcontractors on the SITE on safety matters and shall promptly comply with any specific safety instructions or directions given to the CONTRACTOR by IKPT.

The CONTRACTOR shall submit a written Safety Program prior to the commencement of WORKS with detail commensurate with the WORKS to be performed for IKPT’s review and approval. Such responsibility for safety, nor shall such approval be construed as limiting in any manner of the CONTRACTOR’s obligation to undertake any action which may be necessary or required to establish and maintain safe working conditions at the SITE. The CONTRACTOR shall hold "New Hire" safety orientations for all new employees to instruct them in the requirements of the approved Safety Program. The CONTRACTOR shall schedule weekly meetings to instruct its personnel on safety practices and hazards unique to their Job. Documentation pertaining to these meetings must be available for review by IKPT. The CONTRACTOR shall, at its expense, furnish safety equipment and enforce the use of such equipment by its employees.

Prior to commencement of work at the SITE, the CONTRACTOR shall employ a full time qualified Safety Representative at the SITE with authority for enforcement of the full intent of the CONTRACTOR’s safety procedures. Such Safety Representative shall be subject to approval by IKPT, and shall attend all project safety meetings and participate fully in all activities outlined in the approved Safety program.

IKPT may organize all CONTRACTOR’s employees and workers including IKPT’s employees into Safety Committee. Safety Committee may raise its operating funds from each CONTRACTOR (Local Currency/Person/Month) for common safety purpose such as safety mass meeting, safety signal and signboard.

GTC 27 ILLUMINATION

When any WORKS is performed at night or where daylight is obscured, the CONTRACTOR shall, at its expense, provide artificial light sufficient to permit work to be carried on efficiently,

satisfactorily and safely, and to permit thorough inspection. During such time periods the access to the place of work shall also be clearly illuminated. All wiring for electric light and power shall be installed and maintained in a safe manner and meet all applicable codes and standards

GTC 28 TEST AND INSPECTION

(1) All the materials and workmanship shall from time to time be subject to such tests and inspections as required by the CONTRACT, as may be directed by IKPT or as may be required by the laws or regulations of the COUNTRY, to be performed at the place of manufacture or of fabrication or on the SITE or at other place. The CLIENT and IKPT respectively have the right to witness any and all such tests and inspections, and the CONTRACTOR shall provide IKPT and the CLIENT with necessary assistance, free of charge. The CONTRACTOR shall at his cost perform all such tests and inspections and provide all instruments, machines, labour and materials, etc. necessary therefor. Witness by IKPT and/or the CLIENT of such tests and inspections or their failure so to do shall not relieve the CONTRACTOR from his responsibilities and liabilities under the CONTRACT.

The costs and expenses for every such test and inspection as aforementioned shall all be to the CONTRACTOR's account, unless any test and/or inspection is directed by IKPT in addition to those required by the CONTRACT or by laws or regulations, and the works and/or the equipment and materials so tested and/or inspected are proven to be conforming to the requirements of the CONTRACT.

(2) The CONTRACTOR shall at his cost furnish IKPT for approval with adequate samples of the materials to be used for the PERMANENT WORKS, along with the test reports and data thereof. The CONTRACTOR shall also furnish at his cost samples of materials for the tests other than are indicated in the TECHNICAL DOCUMENTS, if such test is in IKPT's opinion necessary to ascertain their conformance to the appropriate standards.

(3) The CONTRACTOR shall at his cost prepare or obtain from the respective manufacturers all the test and inspection reports called for by the CONTRACT, and shall submit to IKPT the original of and copies of the required number of such reports within the time that may be specified in TECHNICAL DOCUMENTS.

(4) No work shall be covered or put out of view without IKPT's prior approval in connection therewith, and the CONTRACTOR shall give notice to and afford full opportunity for IKPT to examine any work before it shall be covered.

The CONTRACTOR shall uncover any part of the PERMANENT WORKS or make openings in or through it as IKPT may direct, and shall reinstate or make good such uncovered part to the reasonable satisfaction of IKPT. If any such part shall have been covered after prior notice to and approval by IKPT and shall be found to have been properly performed in accordance with the CONTRACT, all the expenses incurred by uncovering, making openings in or through, reinstating or making good the same shall be borne by IKPT, but in any other case, all such shall be to the CONTRACTOR's account.

GTC 29 COMPLETION OF WORKS

(1) COMPLETION OF WORKS shall occur upon the fulfillment of all the following requirements and conditions:

(a) The WORKS, excluding such remaining minor works as finishing of insulation and painting or other items not materially affecting the operation or safety of the PLANT ("Punchlist Items"), shall have been completed in all respects in accordance with the CONTRACT and shall have successfully passed any and all final tests mentioned therein. The CONTRACTOR shall have undertaken and assured that all the remaining works shall be completed within the period to be so stated in the Certificate of COMPLETION OF WORKS.

(b) All of the CONTRACTOR's CONSTRUCTION EQUIPMENT and TEMPORARY WORKS no longer required to complete the remaining works shall have subject to IKPT's prior approval been cleared away and removed from the SITE. The whole of the work areas used by the CONTRACTOR shall have been made and maintained in a workmanlike tidy condition to the reasonable satisfaction of IKPT.

(c) All necessary documents enumerated in the TECHNICAL DOCUMENTS shall have been submitted by the CONTRACTOR and duly accepted by IKPT.

(d) Each work shall have successfully passed any and all final tests or inspections by the CLIENT and IKPT and/or duly constituted authorities of the COUNTRY and the test and inspection results shall have been duly accepted and approved by IKPT and the CLIENT.

(e) IKPT has issued the Certificate of COMPLETION OF WORKS certifying the fulfillment of the items (a) thru (d) above. The Certificate shall contain a list of Punchlist Items, if any, and the duration within which the Punchlist Items shall have to be all completed.

(2) When the CONTRACTOR considers that the requirements of the items (a) thru (d) of the preceding Subclause (1) have been fulfilled, he shall issue to IKPT the written notice thereof, with necessary supporting documents and a list of Punchlist Items. IKPT shall then inspect, within twenty-one (21) days after receipt of the notice from the CONTRACTOR, the PERMANENT WORKS to ascertain whether the said requirements are satisfied or not and shall either:

(a) issue the Certificate of COMPLETION OF WORKS, or

(b) issue to the CONTRACTOR a notice with a list of all the works to be made good or completed before issuance of the Certificate of COMPLETION OF WORKS. When the CONTRACTOR considers that all such works are made good or completed, the CONTRACTOR shall then submit to IKPT the aforementioned notice once again.

(3) If the CONTRACTOR fail to complete all the Punchlist Items by the date so mentioned in the Certificate of COMPLETION OF WORKS, IKPT may in place of the CONTRACTOR carry out or cause other contractor to carry out the remaining works or any thereof and, in such event, shall recover from the CONTRACTOR all the costs and expenses directly and indirectly incurred therefrom.

(4) IKPT shall have the right to take possession of or use any substantially completed unit or section of the PERMANENT WORKS, however, such possession or use shall not be construed as COMPLETION OF WORKS.

When any separate time for completion in respect of particular unit or section is provided for in the CONTRACT, IKPT may issue to the CONTRACTOR the Certificate of Unit Completion in the same procedures as stipulated in Subclauses (1) and (2) of this GTC 29, and in which case, the term "PERMANENT WORKS" as used in the said Subclauses shall read as "unit or section of the PERMANENT WORKS" accordingly.

The Certificate of COMPLETION OF WORKS in this case shall be issued when the Certificate of Unit Completion for the last unit or section of the PERMANENT WORKS is issued.

(5) Upon issuance to the CONTRACTOR of the Certificate of COMPLETION OF WORKS, the PERMANENT WORKS shall be considered to have been taken over by IKPT, whereupon the risk of damage to or loss of the PERMANENT WORKS or any part thereof shall pass to IKPT.

GTC 30 PROVISIONAL ACCEPTANCE OF WORKS

(1) The PROVISIONAL ACCEPTANCE OF WORKS shall occur when all the following requirements and conditions are satisfied:

(a) The Punchlist Items listed in the Certificate of COMPLETION OF WORKS have been completed and the whole of the PERMANENT WORKS shall have been completed in accordance with the CONTRACT and to the reasonable satisfaction of IKPT.

(b) All of the CONTRACTOR's remaining CONSTRUCTION EQUIPMENT and TEMPORARY WORKS shall, subject to IKPT's prior approval or in accordance with IKPT's instructions, if given, have been cleared away and removed from the SITE. The whole of the work areas made available to the CONTRACTOR shall have been left unobstructed and in a workmanlike tidy condition to the satisfaction of IKPT.

(c) All the surplus and scrap materials shall have been collected at the designated place in the SITE and shall have been returned to or handed over to IKPT, with an appropriate document confirming that the title thereof belongs to IKPT as between IKPT and the CONTRACTOR.

All necessary documents, data and information enumerated in the TECHNICAL DOCUMENTS shall have been submitted to by the CONTRACTOR and duly accepted by IKPT.

(e) IKPT has issued the Certificate of PROVISIONAL ACCEPTANCE OF WORKS certifying the fulfillment of the items (a) thru (d) above.

(2) When the CONTRACTOR considers that the requirements of items (a) thru (d) of the preceding Subclause (1) have been fulfilled, the CONTRACTOR shall notify IKPT thereof with necessary supporting documents. IKPT shall, within twenty-one (21) days from the date of receiving the notice, inspect the PERMANENT WORKS to ascertain whether the said requirements are satisfied or not and shall either:

(a) issue the Certificate of PROVISIONAL ACCEPTANCE OF WORKS, or

(b) issue to the CONTRACTOR a notice stating all the works to be made good or completed before issuance of the Certificate of PROVISIONAL ACCEPTANCE OF WORKS. When the CONTRACTOR considers that all such works are made good or completed, the CONTRACTOR shall then submit to IKPT the aforementioned notice once again.

(3) The Certificate of PROVISIONAL ACCEPTANCE OF WORKS shall not relieve the CONTRACTOR from his remaining obligations and responsibilities under the CONTRACT.

GTC 31 FINAL ACCEPTANCE OF WORKS

Subject to the condition that the CONTRACTOR have faithfully to the reasonable satisfaction of IKPT fulfilled his obligations under GTC 33 'DEFECTS LIABILITY", on the date of expiry of the DEFECTS LIABILITY PERIOD, the CONTRACTOR shall submit to IKPT a request for FINAL ACCEPTANCE OF WORKS. Within twenty one (21) days of receipt by IKPT of the request, IKPT shall, unless anything prevents IKPT from complying with the CONTRACTOR's request, finally accept the PERMANENT WORKS and issue the Certificate of FINAL ACCEPTANCE OF WORKS and, along therewith, shall return to the CONTRACTOR the Performance Bond and Retention Money, if retained by IKPT.

Part V INDEMNITIES AND LIABILITIES

GTC 32 LIQUIDATED DAMAGES FOR DELAY

If the CONTRACTOR fails to clear any of the Milestones specified in SC 7.1 "LIQUIDATED DAMAGES FOR DELAY" for reasons attributable to the CONTRACTOR, then he shall pay IKPT or IKPT may deduct from any money due or becoming due to the CONTRACTOR, as Liquidated Damages for Delay, the total sum to be calculated from and arrived at out from the period of delay and the rate for the Damages specified in SC 7.1 "LIQUIDATED DAMAGES FOR DELAY" and in the manner as may be stipulated therein.

Payment or deduction of such Damages shall not relieve the CONTRACTOR from his obligation for completing the WORKS and the PERMANENT WORKS or from his any other obligations and liabilities under the CONTRACT, nor shall it be construed as denial of IKPT's right for any other remedy under the CONTRACT.

Any of IKPT's involvement under GTC 19 "PROGRESS OF WORKS" above shall not any way diminish the CONTRACTOR's liability for the Liquidated Damages hereunder.

GTC 33 DEFECTS LIABILITY

(1) The CONTRACTOR shall be liable for defects, damages and imperfections etc. in the PERMANENT WORKS, fair wear and tear excepted, which may appear, occur or be found during the DEFECTS LIABILITY PERIOD and which are caused for reasons attributable

to the CONTRACTOR ("Defect"), and shall make good the same, with all possible speed and at his expense.

Even in the event of disagreement as to the cause of such Defect, the CONTRACTOR shall nevertheless perform promptly at all possible speed all necessary remedial works, provided, the CONTRACTOR's right for claim thereof under GTC 46 "CONTRACTOR's CLAIMS" shall be in no way prejudiced. IKPT shall make additional payment to the CONTRACTOR if such Defect has been found to be not attributable to the CONTRACTOR.

(2) DEFECTS LIABILITY PERIOD shall start on and from the date of COMPLETION OF WORKS and shall end upon expiry of that period, which length shall be as provided for in SC 8.1 "DEFECTS LIABILITY PERIOD".

Should the CONTRACTOR make good any Defect, the DEFECTS LIABILITY PERIOD for the part made good shall restart on the date of completion of the making good and shall last for the period as provided for in SC 8.1 "DEFECTS LIABILITY PERIOD".

GTC 34 GENERAL INDEMNIFICATION

The CONTRACTOR shall indemnify, defend and save the CLIENT, IKPT, their contractors other than the CONTRACTOR, their respective officers and employees and the CLIENT's and IKPT's agents, if any, from and against any and all suits, actions, legal and administrative proceedings, claims, demands, damages, losses, liabilities, interests, attorney's fees, costs and expenses, and so forth of whatever kind or nature, whether arising before or after FINAL ACCEPTANCE OF WORKS, in respect of death, injury, disease or sickness, or damage to or loss of any property, including the CLIENT's existing facilities, if any, arising from or in connection with the WORKS, irrespective of whether or not the WORKS or any part thereof shall have been carried out by the CONTRACTOR or the SUBCONTRACTORs or by their employees, agents or others under control of or on invitation by the CONTRACTOR or the SUBCONTRACTORs, and whether or not any such matter shall have been resulted or derived from any condition of the SITE or any defect in any of those provided, supplied or otherwise furnished by IKPT to the CONTRACTOR upon the CONTRACTOR's request.

GTC 35 PATENT RIGHT

The CONTRACTOR shall save harmless and indemnify IKPT and the CLIENT and their respective agents, if any, from and against all claims and proceedings for or on account of infringement or alleged infringement of any rights of patented or unpatented inventions and other industrial rights.

GTC 36 LIENS

The CONTRACTOR shall at all times indemnify and hold harmless IKPT and the CLIENT and/or their respective agents, if any, from and against all liens, claims and demands of his employees or of parties from whom materials or equipment, etc. used in or for the WORKS, the PERMANENT WORKS or the TEMPORARY WORKS have been purchased or obtained or by whom the WORKS or any part thereof have been carried out.

If a lien of any nature should at any time be filed or asserted against IKPT, the CLIENT and/or their respective agents with respect to any claim from CONTRACTOR's employees or from parties from whom services, materials or equipment, etc. used in or for the WORKS have been purchased or obtained or by whom the WORKS or any part thereof have been carried out, CONTRACTOR shall promptly notify IKPT of such lien and shall promptly and at CONTRACTOR's own expense, take any and all action necessary to cause such lien to be released or discharged, or secure and file a security bond covering the amount of such lien, regardless of the action CONTRACTOR may then be taking with respect to such claim.

If CONTRACTOR fails to furnish to IKPT within ten (10) days after demand by IKPT, satisfactory evidence that any such lien has been so released, discharged, or secured, then IKPT may cause such lien to be released, discharged, or secured and IKPT may deduct the cost thereof, together with any and all losses, costs, damages, and attorneys' fees and expenses, reasonably incurred or suffered by IKPT in connection therewith, from any money due or becoming due to CONTRACTOR under the CONTRACT or, alternatively, require CONTRACTOR to pay such amounts to IKPT within five (5) days.

The CONTRACTOR shall attach the Lien Release Notice for the invoiced amount together with other documents each time CONTRACTOR submits an Invoicing Dossier. The format and content of the Lien Release Notice shall be agreed between IKPT and the CONTRACTOR.

Within a reasonable time after COMPLETION OF WORKS but before PROVISIONAL ACCEPTANCE OF WORKS under any circumstances, the CONTRACTOR shall submit his written declaration that all liens, claims and demands as aforesaid have all been fully discharged, and that the equipment and materials furnished and the WORKS done by the CONTRACTOR, and/or the SUBCONTRACTOR, under the CONTRACT are fully released from all such liens, claims and demands.

The Certificate of PROVISIONAL ACCEPTANCE OF WORKS shall not be issued until and unless the aforesaid declaration shall have been submitted to and duly accepted by IKPT.

GTC 37 CONSEQUENTIAL DAMAGES

Neither party shall in any event be liable to the other by way of indemnity or by reason of any breach of the Contract or in tort or otherwise for loss of profit, loss of business, loss of any contract, or for any indirect, special or consequential loss or damage that may be suffered by the other party in connection with the CONTRACT.

GTC 38 REMAINING OBLIGATIONS

The provisions of GTC 34 "GENERAL INDEMNIFICATION", GTC 35 "PATENT RIGHT", GTC 36 "LIENS", GTC 39 "SECRECY" and GTC 6 "SETTLEMENT OF DISPUTES" shall survive termination for whatever reasons of the CONTRACT.

GTC 39 SECRECY

The information contained in the CONTRACT DOCUMENTS or any technical or non-technical information that may from time to time be furnished to or obtained by the CONTRACTOR in relation to the WORKS, the PERMANENT WORKS and/or the PLANT

(hereinafter collectively referred to as "IKPT's Proprietary Information") shall at all the time remain the property of IKPT and, only for the sake of performing and completing the WORKS, the CONTRACTOR shall be permitted to use IKPT's Proprietary Information or any part thereof.

The CONTRACTOR shall not use IKPT's Proprietary Information or any part thereof for any work or purpose other than contemplated in the CONTRACT in any manner and under any circumstances.

The CONTRACTOR hereby represents that he shall keep IKPT's Proprietary Information secret and confidential at all the time and that, in the event of his disclosure or alleged disclosure of IKPT's Proprietary Information or any part thereof, whether by accident or otherwise, the CONTRACTOR shall assume the liability resulting therefrom and shall make reasonable compensation to IKPT as it may require.

The CONTRACTOR agrees to and shall enter into a separate Secrecy Agreement as per the form furnished to the CONTRACTOR by or acceptable to IKPT, unless such a Secrecy Agreement has already been existing between IKPT and the CONTRACTOR.

The CONTRACTOR shall, without prior approval of IKPT, make no publicity announcements or releases to the press or other publicity media, in respect to the CONTRACT, the PERMANENT WORKS, the PLANT and the CLIENT's existing facilities, if any, or any respective part thereof.

Appropriate clause to carry out the purpose and intent hereof shall be included in all subcontracts, purchase orders, service contracts, consulting agreement and so on that may be entered into by the CONTRACTOR for the sake of implementation of the CONTRACT. Notwithstanding such steps taken by the CONTRACTOR or inclusion of such clause therein as required hereunder, the CONTRACTOR shall remain liable for any failure or refusal of the SUBCONTRACTORs, vendors or consultants to comply with this requirement.

Part VI RISK DISTRIBUTION

GTC 40 CARE AND PROTECTION

(1) The CONTRACTOR shall until the time of taking-over by IKPT of the PERMANENT WORKS protect the PERMANENT WORKS and repair, replace or make good such damage, loss or injury as may arise in the PERMANENT WORKS or any part thereof, including the EQUIPMENT AND MATERIALS which have been issued to the CONTRACTOR.

(2) The WORKS and any operations associated therewith shall be carried out in such manner as not to interfere with the convenience of the public or others in use or occupation of the access to and from the SITE, of public or private roads, bridges and footpaths or of properties in the possession of any person or party. The CONTRACTOR shall at his cost make all the arrangements necessary for obtaining the right for using or occupying any and all of the aforementioned and provide and maintain such measures as may be necessary for care and protection thereof.

GTC 41 INSURANCE

41.1 IKPT-FURNISHED INSURANCES

Without limiting the CONTRACTOR's responsibilities, liabilities and obligations under the CONTRACT, IKPT shall take out and maintain the insurances enumerated in SC 6.1 "IKPT-FURNISHED INSURANCES".

41.2 CONTRACTOR-FURNISHED INSURANCES

The CONTRACTOR shall at his cost take out and maintain for the entire period of the CONTRACT the insurances enumerated in SC 6.2 "CONTRACTOR-FURNISHED INSURANCES".

41.3 GENERAL REQUIREMENTS FOR INSURANCES

(1) The CONTRACTOR shall cause his insurer(s) to name the CLIENT, IKPT and their respective agents, if any, as co-insureds in the policies of the insurances which the CONTRACTOR shall take out and maintain under the CONTRACT.

(2) The CONTRACTOR shall cause his insurer(s) to waive its right of subrogation against the CLIENT, IKPT and their respective agents, if any, and their respective contractors other than the CONTRACTOR. Such waiver of subrogation by the CONTRACTOR's insurer(s) shall be exhibited in the respective policies of the CONTRACTOR-furnished insurances.

(3) The CONTRACTOR shall, before commencement of Work-on-Site under any circumstances, submit to IKPT two (2) copies of policies of the CONTRACTOR-furnished insurances.

(4) If the CONTRACTOR fail to effect any of the insurances referred to in GTC 41.2 "CONTRACTOR-FURNISHED INSURANCES", IKPT may, in place of the CONTRACTOR, take out and maintain such insurances and, in such event, the cost thereof, including all the expenses incurred by IKPT in relation thereto, shall be reimbursed by the CONTRACTOR to IKPT or recovered by IKPT according to GTC 12 "BACKCHARGES" and/or other applicable provisions of the CONTRACT.

(5) For the sake of overall control of the insurances and for the convenience of easier handling of the claims to the insurer, IKPT may designate a certain insurance company or agent and direct the CONTRACTOR to take out from the said company or agent the insurances as per GTC 41.2 "CONTRACTOR-FURNISHED INSURANCES". The CONTRACTOR shall when so directed comply therewith, without any contest. The difference in the premiums, if any, shall be subject to settlement.

(6) The CONTRACTOR shall, if he has caused any accident resulting in any loss or damage to be covered by a IKPT-furnished insurance, become responsible to do all relevant office works as to the insurance claim and, on behalf of IKPT whenever IKPT so requires, carry out negotiations necessary for settlement of such claims submitted to the insurance company or agent.

GTC 42 SITE CONDITIONS

In this GTC 42, "site conditions" means natural physical conditions and manmade and other physical obstructions and pollutants, which the Contractor encounters at the Site when executing the Works, including sub-surface and hydrological conditions but excluding climatic conditions.

If the CONTRACTOR encounters adverse site conditions which could not be reasonably inferred from the soil reports and other information provided in the TECHNICAL DOCUMENTS, and provided that such conditions could not have been reasonably foreseen by an experienced contractor, then the CONTRACTOR shall before continuing work in that area or disturbing such condition, give notice to IKPT as soon as practicable but not later than seven (7) days after the CONTRACTOR became aware, or should have become aware of the event or circumstance.

This notice shall describe the physical conditions, so that they can be inspected by IKPT, and shall set out the reasons why the CONTRACTOR considers them to be unforeseeable. IKPT shall after investigating such conditions and determining the reasonable measures appropriate for the current SITE conditions, instruct the CONTRACTOR to proceed with the WORKS. If such instruction constitutes a WORK CHANGE, GTC 44 "WORK CHANGE" shall apply.

If and to the extent that the CONTRACTOR encounters site conditions which are unforeseeable, gives such a notice, and suffers delay and/or incurs cost due to these conditions, the CONTRACTOR shall be entitled subject to notice under GTC 46 "CONTRACTOR's CLAIMS" to:

(a) an adjustment to the CONTRACT WORK SCHEDULE for any such delay, if completion is or will be delayed, under GTC 45 "ADJUSTMENT TO THE CONTRACT WORK SCHEDULE", and

(b) payment of any such cost shall be subject to GTC 44 "WORK CHANGE".

The CONTRACTOR's notice submitted under GTC 46 "CONTRACTOR's CLAIMS" shall include, among others, a critical path method analysis and a demonstration of how CONTRACTOR will minimize costs and delay, analysis of the soil reports provided in the TECHNICAL DOCUMENTS, based on soil investigation to be conducted by a reputable soil investigation company.

IKPT and CONTRACTOR shall promptly consult one another concerning the effect of adverse site conditions, if any, and when necessary, the CONTRACT PRICE and CWS shall be equitably adjusted to take into account the effect that the CONTRACTOR demonstrates is attributable to such difference in conditions. CONTRACTOR shall use all reasonable measures to mitigate the effect of such difference in conditions and the foregoing adjustments shall take into account the ability of CONTRACTOR to reschedule project activities in order to minimize overall delays in the CWS and overall increase in its actual costs.

However, before additional cost, if any, is finally agreed or determined, IKPT may also review whether other physical site conditions in similar parts of the WORKS (if any) were more favourable than could reasonably have been foreseen when the CONTRACTOR submitted the Tender. If and to the extent that these more favourable conditions were

encountered, IKPT may determine the reductions in cost which were due to these conditions, which may be included (as deductions) in the CONTRACT PRICE. However, the net effect of all such adjustments and all these reductions, for all the site conditions encountered in similar parts of the WORKS, shall not result in a net reduction in the CONTRACT PRICE.

IKPT shall take account of any evidence of the physical conditions foreseen by the CONTRACTOR when submitting the Tender, which shall be made available by the CONTRACTOR, but shall not be bound by the CONTRACTOR's interpretation of any such evidence.

GTC 43 FORCE MAJEURE

(1) The term "FORCE MAJEURE" means and includes such circumstances or occurrences which are beyond the reasonable control of, could not have at the time of executing the CONTRACT been foreseen or anticipated by and could not be legitimately avoided by the party affected, and which materially prevent or delay such party from or in performing any of such party's obligations under the CONTRACT, and which are, but not limited to:

(a) acts of God,

(b) earthquake, flood, landslide or other catastrophe similar thereto,

(c) plague or epidemic,

(d) fire, explosion or other disaster similar thereto (other than the ones occasioned or caused by the CONTRACTOR and/or the SUBCONTRACTORs),

(e) strike, sabotage or lock-out (excluding the ones exercised by the employees of the CONTRACTOR and/or the SUBCONTRACTORs),

(f) embargo, blockade or failure of transportation facilities,

(g) war (whether declared or not), act of foreign enemy, hostilities or invasion (insofar as are related to the COUNTRY),

(h) revolution, civil commotion or other public disorder,

(i) rebellion, riot or insurrection (unless solely restricted to the employees of the CONTRACTOR and/or the SUBCONTRACTORs), or

(j) governmental act, order or restraint, or requisition or confiscation by any public authority of the facilities essential for due implementation of the CONTRACT, or any other act, event, cause or occurrence rendering such party unable to perform his obligations under the CONTRACT.

(2) If either party hereto is materially prevented from or delayed in performing any of his obligation under the CONTRACT by any of FORCE MAJEURE circumstances or occurrences, the party thereby affected shall promptly notify the other party thereof in writing within seven (7) days of arising out of such circumstances or occurrences.

The party giving such notice within the specified time shall thereupon be excused from the performance or punctual performance, as the case may be, of such obligation to the extent and so long as may be justified by such circumstances or occurrences.

(3) The period of suspension of or delay in the performance of the CONTRACTOR's obligations due to FORCE MAJEURE shall whenever necessary be taken into IKPT's due account with regard to re-planning of work sequence, etc. and to adjustment of time schedule pursuant to GTC 19 "PROGRESS OF WORKS".

The party affected by FORCE MAJEURE shall make his best effort to mitigate the impact of such suspension or delay in the performance of the contractual obligations thereby affected and to recover or minimize the delay in the overall construction schedule so as to complete the PERMANENT WORKS, eventually the PLANT, in time.

(4) If any party hereto shall have been prevented from performing its contractual obligations due to FORCE MAJEURE for a period of over six (6) months from the date of the notice referred to in Subclause (2) of this GTC 43, and if IKPT reasonably judges that performance of contractual obligations being prevented by FORCE MAJEURE could not be resumed shortly thereafter, the parties hereto shall discuss as to the future implementation of the CONTRACT for the sake of mutual benefits.

Part VII CHANGE IN CONTRACT ELEMENTS

GTC 44 WORK CHANGE

(1) IKPT at any time, without invalidating the CONTRACT, has the right to instruct to the CONTRACTOR a WORK CHANGE by altering, adding to or deducting from the WORKS, and the CONTRACTOR shall perform the WORKS so changed in accordance with provisions of this GTC 44.

(2) Depending on the nature of work, such WORK CHANGE shall be categorized as:

(a) Work Variation

Work Variation means any change, within the CONTRACTOR’s Scope of Works under the CONTRACT, in or in relation to the PERMANENT WORKS and/or the WORKS in terms of quality, construction specification and/or work nature.

Work Variation shall be performed under a Work Variation Order (hereinafter referred to as “WVO”), issued by IKPT.

(b) Additional Work

Additional Work means any work which has not been originally included in the CONTRACTOR's Scope of Works under the CONTRACT, yet for whatever reason whether artificial or natural, has become necessary and essential to be performed and completed for the overall completion of the PERMANENT WORKS or of the PLANT, and includes any and all such works as aforementioned, whether of an additional or extra nature. Unless otherwise provided for elsewhere in the CONTRACT, additional work shall be carried out under the supervision by the CONTRACTOR who shall be responsible and liable for the quality of, progress of and completion in time of such works.

Additional Work shall be performed under an Additional Work Order (hereinafter referred to as “AWO”), issued by IKPT.

(c) Day Work

Day Work means any work of a nature of piecework, including such services as mere proffer to the CLIENT, IKPT or other contractors, of manpower and/or some of the CONTRACTOR's CONSTRUCTION EQUIPMENT and TEMPORARY WORKS, e.g., such miscellaneous works as some support work, assistance work, cleaning work, temporary in-site transportation work.

Day Work shall be performed under a Day Work Order (hereinafter referred to as “DWO”), issued by IKPT.

DWO shall be compensated by the actual working hours based on CONTRACTOR’s submitted time sheet certified by IKPT and the Day Work Rates set out in the SCHEDULE OF PRICES AND RATES.

(3) If IKPT issues to the CONTRACTOR an instruction for WORK CHANGE as defined in Subclause (2) above, the CONTRACTOR shall submit to IKPT, estimates and supporting documentation required to justify the amount to be compensated and the adjustment to the CWS due to WORK CHANGE, if any. Adjustment to CWS shall be calculated in accordance with Subclause (9) of this GTC 44.

(4) When the CONTRACTOR and IKPT reach an agreement on a price compensation, adjustment of CWS and/or any other conditions of the CONTRACT, the CONTRACTOR and IKPT shall execute the appropriate change order documentation, such as, Work Variation Order, Additional Work Order or Day Work Order as stipulated herein.

(5) The CONTRACTOR shall not proceed with performing any WORK CHANGE until IKPT executes the change order documentation, except in the following situations:

(a) IKPT authorizes the CONTRACTOR to proceed with a WORK CHANGE prior to completion of the CONTRACTOR’s estimate or final agreement on the amount of adjustment allowable. In such situations, the CONTRACTOR will be authorized in writing to proceed, and such written authority is limited by IKPT to specific critical work and IKPT may prescribe an interim accounting procedure to be utilized until final agreement is reached.

(b) The WORK CHANGE is necessary because of immediate threats to life or property.

(6) No price compensation or adjustment to CWS will be made except by authorized change order, and neither price compensation nor adjustment to CWS or any other conditions will be made in the following situations:

(a) The WORK CHANGE was necessitated in whole or in part by the CONTRACTOR’s failure to comply with a requirement of the CONTRACT.

(b) After final payment has been received by the CONTRACTOR.

(7) Price compensation or adjustment to CWS once executed shall be final. Such agreed compensation and adjustment shall be deemed to include any effect on this and all previous WORK CHANGES and the cumulative effect on all other portions of the WORKS.

(8) Any WORK CHANGE that adjusts CWS shall be incorporated into the CONTRACTOR's detailed work schedule and construction planning. Any costs of such revision to detailed work schedule shall be included in price compensation for the WORK CHANGE.

(9) In order to obtain adjustment of CWS due to WORK CHANGE, the CONTRACTOR, when requested by IKPT, shall submit a detailed work schedule showing the net effect on the current predicted date of COMPLETION OF WORKS by performing the WORK CHANGE. When IKPT and the CONTRACTOR agreed on the net effect on current predicted date of COMPLETION OF WORKS, the target date of COMPLETION OF WORKS shall be adjusted as per the agreed manner.

(10) In preparing plans and estimates for WORK CHANGES, the CONTRACTOR shall reasonably mitigate any cost and schedule impact as an experienced and professional contractor. If IKPT reasonably considers that a more effective plan exists to mitigate the impact, IKPT has the right to instruct the CONTRACTOR to implement such a plan or, if the CONTRACTOR withdraws to implement same, to cause it to be implemented by others.

(11) If the CONTRACTOR reasonably believes that any interpretation, instruction or decision, other than an express instruction for WORK CHANGE, given to the CONTRACTOR by IKPT constitute a WORK CHANGE, the CONTRACTOR shall prior to proceeding with the work issue to IKPT a written notice under GTC 46 "CONTRACTOR's CLAIMS" of the CONTRACT.

GTC 45 ADJUSTMENT TO THE CONTRACT WORK SCHEDULE

The CONTRACTOR shall be entitled subject to GTC 46 "CONTRACTOR's CLAIMS" to an adjustment to the CWS if and to the extent that completion for the purposes of GTC 19 "PROGRESS OF WORKS" is or will be delayed by any of the following causes:

(1) a CHANGE WORK (unless an adjustment to the CWS has been agreed under GTC 44 "WORK CHANGE"),

(2) a cause of delay giving an entitlement to adjustment to the CWS under the provisions of the CONTRACT, or

(3) any delay, impediment or prevention caused by or attributable to IKPT or IKPT's Personnel, provided that such delay, impediment or prevention is not caused by any error or delay by the CONTRACTOR, including an error in, or delay in the submission of, any of the CONTRACTOR's documents.

If the CONTRACTOR considers himself to be entitled to an adjustment to the CWS, the CONTRACTOR shall give notice to IKPT in accordance with GTC 46 "CONTRACTOR's CLAIMS".

Any adjustment to the CWS shall be made with the aim of securing the completion of the PLANT in time.

GTC 46 CONTRACTOR'S CLAIMS

If the CONTRACTOR considers himself to be entitled to any adjustment to the CWS and/or any additional payment, under any provisions of the CONTRACT, the CONTRACTOR shall give notice to IKPT, describing the event or circumstance giving rise to the claim. The notice shall be given as soon as practicable, and not later than seven (7) days after the CONTRACTOR became aware, or should have become aware, of the event or circumstance.

If the CONTRACTOR fails to give notice of a claim within such period of seven (7) days, the adjustment to the CWS shall not be granted, the CONTRACTOR shall not be entitled to additional payment, and IKPT shall be discharged from all liability in connection with the claim. Otherwise, the following provisions of this GTC 46 shall apply.

The CONTRACTOR shall also submit any other notices which are required by the CONTRACT, and supporting particulars for the claim, all as relevant to such event or circumstance. The CONTRACTOR shall keep such contemporary records as may be necessary to substantiate any claim, either on the Site or at another location acceptable to IKPT. Without admitting IKPT's liability, IKPT may, after receiving any notice under this GTC 46, monitor the record-keeping and/or instruct the CONTRACTOR to keep further contemporary records. The CONTRACTOR shall permit IKPT to inspect all these records, and shall (if instructed) submit copies to IKPT.

Within fifteen (15) days after the CONTRACTOR became aware (or should have become aware) of the event or circumstance giving rise to the claim, or within such other period as may be proposed by the CONTRACTOR and approved by IKPT, the CONTRACTOR shall send to IKPT a fully detailed claim which includes full supporting particulars of the basis of the claim and of the extension of time and/or additional payment claimed.

If the event or circumstance giving rise to the claim has a continuing effect:

(1) this fully detailed claim shall be considered as interim;

(2) the CONTRACTOR shall send further interim claims at monthly intervals, giving the accumulated delay and/or amount claimed, and such further particulars as IKPT may reasonably require; and

(3) the CONTRACTOR shall send a final claim within seven (7) days after the end of the effects resulting from the event or circumstance, or within such other period as may be proposed by the CONTRACTOR and approved by IKPT.

Within fifteen (15) days after receiving a claim or any further particulars supporting a previous claim, or within such other period as may be proposed by IKPT and agreed by the CONTRACTOR, IKPT shall respond with approval, or with disapproval and detailed comments. The CONTRACTOR may also request any necessary further particulars, but shall nevertheless give his response on the principles of the claim within the above defined time period.

Within the above defined period of fifteen (15) days, IKPT shall make up a decision whether to agree or determine:

(1) the adjustment (if any) of the CONTRACT WORK SCHEDULE (before or after its expiry) in accordance with GTC 45 “ADJUSTMENT TO THE CONTRACT WORK SCHEDULE”, and/or

(2) the additional payment (if any) to which the CONTRACTOR is entitled under the CONTRACT.

If IKPT does not respond within the timeframe defined in this GTC 46, either Party may consider that the claim is rejected by IKPT and any of the Parties may settle this issue in accordance with GTC 6 “SETTLEMENT OF DISPUTES”.

The requirements of this GTC 46 are in addition to those of any other Clause which may apply to a claim.

GTC 47 SUSPENSION

IKPT shall reserve the right to suspend at any time the WORKS or any part thereof, and the CONTRACTOR shall, upon receipt of written order from IKPT to that effect, suspend the WORKS or any part thereof at such time and in such manner as may be instructed in the Suspension Order and shall properly protect and secure the PERMANENT WORKS to the extent as may be stated therein. The CONTRACTOR shall be entitled to claim for all additional costs incurred by him from complying with the Order and appropriate adjustment of time schedule shall be made, unless such suspension:

(1) is provided for in the CONTRACT,

(2) becomes necessary due to the CONTRACTOR's violation or breach of the CONTRACT,

(3) becomes necessary because of climatic conditions at the SITE, or

(4) becomes otherwise necessary for proper performance of the WORKS and safety of persons at the SITE and/or of the PERMANENT WORKS, PLANT and other facilities in the SITE or any respective part thereof.

The CONTRACTOR shall, subject to GTC 46 "CONTRACTOR’s CLAIMS", notify IKPT of any additional cost that may be incurred by the CONTRACTOR out from the Suspension Order. The amount of the additional costs and/or of adjustment of time schedule shall be discussed and mutually agreed by IKPT and the CONTRACTOR. In case of disagreement, however, IKPT shall have the right to finalize and determine the amount thereof in the manner as IKPT may consider fair and reasonable.

GTC 48 TERMINATION

48.1 TERMINATION BY IKPT

(1) IKPT shall have the right to terminate the CONTRACTOR's right to proceed with the WORKS at any time by giving written notice to the CONTRACTOR. The notice, if issued, shall contain instructions for such actions to be taken by the CONTRACTOR as to preservation of the PERMANENT WORKS and the EQUIPMENT AND MATERIALS

under the custody by and disposal of the TEMPORARY WORKS, the CONSTRUCTION EQUIPMENT, unused materials, etc. in the possession of the CONTRACTOR.

The CONTRACTOR shall, to an extent as shall be reasonably applicable, assume the defects liability pursuant to GTC 33 "DEFECTS LIABILITY", for the portion of the PERMANENT WORKS constructed or completed by the CONTRACTOR by the time of receipt of Termination Notice, and for that purpose, certain clauses of the CONTRACT related thereto shall independently survive and remain effective in force for the period necessary therefor.

(2) Upon receipt of Termination Notice, the CONTRACTOR shall forthwith comply with the instructions thereby given, and shall take such actions as follows:

(a) The CONTRACTOR shall promptly discontinue the WORKS and shall determine what amount in total in respect of the portion of the WORKS actually completed by him under the CONTRACT at the time of receipt of the Termination Notice is due and payable to the CONTRACTOR. The value thereof shall be ascertained, subject to IKPT's verification and approval, and IKPT shall pay the CONTRACTOR the unpaid amount, if any. IKPT shall also pay the CONTRACTOR the following:

i) the sum of money(ies) corresponding to the value of such portion of the WORKS in progress, insofar as the works or services comprised therein have been carried out or performed in accordance with the CONTRACT, and

ii) the cost of materials or goods reasonably ordered for the PERMANENT WORKS, which shall have been delivered to the SITE or which the CONTRACTOR is liable to accept upon delivery thereof, and which shall become the property of IKPT when payment is made by IKPT.

(b) The CONTRACTOR shall preserve the PERMANENT WORKS and take such additional measures required for protection thereof as may be instructed by IKPT. The cost incurred for such preservation or protection ordered to and done by the CONTRACTOR shall be paid to the CONTRACTOR.

(c) Reasonable cost for removal or disposal of the CONTRACTOR's properties referred to in Subclause (1) of this GTC 48.1 shall be paid to the CONTRACTOR, insofar as the cost has not been covered by any other payment under this Subclause or by any previous payment made to the CONTRACTOR.

(d) Reasonable cost of repatriation, upon termination, of the CONTRACTOR's personnel and workers employed for the WORKS shall be paid to the CONTRACTOR, insofar as the cost has not been covered by any other payment under this Subclause or by any previous payment made to the CONTRACTOR.

(3) Subclause (2) of this GTC 48.1 shall not be applied when the termination is due to any default by the CONTRACTOR as per GTC 48.2 "TERMINATION DUE TO CONTRACTOR'S DEFAULT".

In no event shall the CONTRACTOR be entitled to the compensation of any expected profit in respect of unfinished part of the WORKS or any other direct and consequential damages caused by such termination ordered by IKPT.

48.2 TERMINATION DUE TO CONTRACTOR'S DEFAULT

(1) If the CONTRACTOR shall have abandoned or have not performed the WORKS or any part thereof in accordance with the CONTRACT, or have in any respect been in violation or breach of his responsibilities and obligations under the CONTRACT or of any provision of the CONTRACT, despite IKPT's written warning, then, IKPT shall issue to the CONTRACTOR a Notice of Default. Upon receipt thereof, the CONTRACTOR shall take all possible steps to remedy such default or to minimize the impact or consequence of such default.

(2) Should the CONTRACTOR fail to remedy such default within fourteen (14) days after the date of the Notice of Default, IKPT may, by issuing a Termination Notice to the CONTRACTOR, terminate the CONTRACTOR's right to proceed with the WORKS or any such part thereof as to which the default has occurred.

(3) Notwithstanding the provisions of Subclauses (1) and (2) of this GTC 48.2, IKPT may issue a Notice with immediate effect for termination of the CONTRACTOR's right to proceed with the WORKS or any part thereof, if the CONTRACTOR shall:

(a) have committed violation or breach of the CONTRACT, which in IKPT's opinion is serious, or

(b) have failed to achieve any Milestone imposed on the CONTRACTOR, within two (2) months from the date set for the corresponding Milestone.

(c) become insolvent, make an assignment for the benefit of creditors, be adjudicated as bankrupt, admit in writing inability to pay its debts generally as same become due, or should any proceedings be instituted by the CONTRACTOR under law for relief of debtors or for the appointment of a receiver, trustee or liquidator of the CONTRACTOR, or should a voluntary petition in bankruptcy for reorganization or for an adjudication of the CONTRACTOR as an insolvent or a bankrupt be filed, or should an attachment be levied upon the CONTRACTOR’s equipment and not removed within five (5) days therefrom.

(4) After the issuance of the said Termination Notice, the following steps or any of them shall, as the need arises, be taken.

(a) The CONTRACTOR shall promptly stop performing the WORKS and, subject to IKPT's verification and approval, shall determine what amount in total has by the time of the Termination Notice been paid to and what amount in total in respect of the portion of the WORKS actually completed by him according to the CONTRACT by the time of the Termination Notice is due and payable to the CONTRACTOR.

The CONTRACTOR shall not be entitled to receive any further payment until the WORKS shall have been completed and the completed PERMANENT WORKS shall have been taken care of and duly handed over to the CLIENT.

(b) The CONTRACTOR shall at his cost preserve the PERMANENT WORKS and take all such additionally required measures for protection thereof as may be instructed by IKPT.

(c) The CONTRACTOR shall, in consultation with IKPT, prepare the inventory of all his properties brought for the WORKS and located in or in the vicinity of the SITE. IKPT shall reasonably decide the manner of disposal of such properties of the CONTRACTOR, and shall issue to the CONTRACTOR appropriate instructions in respect thereto, which the CONTRACTOR shall comply with and abide by.

The CONTRACTOR shall at his cost remove from the SITE any of the CONTRACTOR's properties which in IKPT's instruction are so designated as no longer necessary for the WORKS.

(d) IKPT shall be entitled to take possession of any of the equipment and materials, the TEMPORARY WORKS and the CONSTRUCTION EQUIPMENT of the CONTRACTOR, which in IKPT's instruction are so designated as required for completing the PERMANENT WORKS.

The equipment and materials thus taken over by IKPT would be used for completing the PERMANENT WORKS and the surplus thereof, if any, may thereafter be returned to the CONTRACTOR, sold or otherwise placed at IKPT's disposal, and the value of the equipment and materials having been used for the PERMANENT WORKS shall be taken into the final debt or credit account referred to in Item (g) of this Subclause.

The TEMPORARY WORKS and the CONSTRUCTION EQUIPMENT taken over by IKPT as aforementioned would also be used for completing the PERMANENT WORKS and may thereafter be returned to the CONTRACTOR, sold or otherwise placed at IKPT's disposal. As for them, if returned to the CONTRACTOR, the rent thereof or, if sold or otherwise disposed, the value thereof shall be taken into the final debt or credit account referred to in Item (g) of this Subclause.

(e) The CONTRACTOR shall, when so instructed by IKPT, assign all subcontracts, purchase orders and like others which the CONTRACTOR has entered into or otherwise concluded in connection with the WORKS.

(f) IKPT may expel the CONTRACTOR from the SITE and may complete the WORKS by itself or by employing any other contractor.

(g) When IKPT shall have handed over to the CLIENT the PERMANENT WORKS, IKPT shall ascertain all the amounts including the Damages for Delay in completion, cost of additional managerial and administrative work that IKPT would have had to do due to Termination under this GTC 48.2 and all other expenses which have due to Termination under this GTC 48.2 been in any way incurred by IKPT with respect to completing the PERMANENT WORKS and taking care of and maintaining the PERMANENT WORKS and the TEMPORARY WORKS, and such amounts shall be the debt of the CONTRACTOR.

Taking into account the amount of outstanding payment referred to in Item (a) of this Subclause, if any, IKPT shall also ascertain the unpaid amount which would have been payable to the CONTRACTOR upon due completion by him of the whole WORKS according to the CONTRACT, and such amount shall be the credit of the CONTRACTOR.

Where the aforesaid credit exceeds the aforesaid debt, IKPT shall pay the excess to the CONTRACTOR or, where the debt exceeds the credit, then the CONTRACTOR shall pay the excess to IKPT.

(h) In no event shall IKPT's failure to exercise any of its rights under the CONTRACT relieve the CONTRACTOR from his obligation of complying with the CONTRACT, nor shall such IKPT's failure prejudice any of its rights for recovery from the CONTRACTOR of any cost incurred by or damage arisen from or caused by such termination due to default by the CONTRACTOR as stated in this GTC 48.2.

GTC 49 ASSIGNMENT AND SUBLETTING

(1) The CONTRACTOR shall not assign the CONTRACT in whole or in part at any time under any circumstances, unless so instructed by IKPT in writing.

(2) The CONTRACTOR shall not sublet the WORKS or any part thereof without IKPT's prior written approval, which approval shall not be unreasonably withheld.

When approved, the CONTRACTOR may sublet the WORKS or any approved part thereof. The CONTRACTOR shall, however, remain fully and entirely responsible and liable for the sublet WORKS or any sublet part of the WORKS, and shall be liable for the acts, failure to act, default or neglect and so on by any of the SUBCONTRACTORs as if all such are committed by the CONTRACTOR himself.

None of the SUBCONTRACTORs shall have any contractual relation or privity with or any right against IKPT.

(3) The CONTRACTOR shall, when requested by IKPT, at his expense, submit to IKPT for its reference or approval an unpriced copy of any of the subcontracts, service contracts and purchase orders prior to award thereof to the SUBCONTRACTORs.

(4) Should any of the SUBCONTRACTORs carry out any work not acceptable to IKPT, IKPT may require the CONTRACTOR to discharge such a subcontract and dismiss such a SUBCONTRACTOR in question, and upon receipt of IKPT's such an instruction, the CONTRACTOR shall comply therewith without any contest and without claiming for any compensation, adjustment of time schedule and so forth..